

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-11419

CASE NAME: CAPITAL ONE, N.A. VS. EDUARDO GARCIA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a Default Judgment, filed on 1/29/26, and dismiss the matter without prejudice.

The Motion is unopposed.

Plaintiff filed a proof of service reflecting mail service of notice of the Motion on the Defendant.

Background

After Plaintiff filed Request for Entry of Default in the matter, on 1/7/26, and prior to the entry of judgment, Defendant filed a bankruptcy claim in federal court. Plaintiff did not learn of the bankruptcy case until after entry of judgment.

Analysis

While Plaintiff served notice of the Motion on a purported mail address for the Defendant, the Defendant was never served with process, nor did the Defendant file anything in this matter. Thus, service is incomplete.

However, the court finds no prejudice to defendant in proceeding with this Motion.

Section 473(d) of the CCP permits a trial court to set aside any void judgment.

The filing of a claim in bankruptcy court renders an automatic stay of any collections matter that commenced before the filing of the bankruptcy claim. *11 U.S.C. Section 362*.

Thus, the instant matter should have been stayed and the judgment should never have issued.

Disposition

Plaintiff's Motion is granted.

This case is dismissed without prejudice.

12. 9:00 AM CASE NUMBER: L25-13185
CASE NAME: CAVALRY SPV I, LLC AS ASSIGNEE OF CITIBANK, N.A. VS. DAVID GASCA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GASCA, DAVID A

***TENTATIVE RULING**

Defendant filed a Motion to compel arbitration and stay proceedings. The Motion is unopposed. Defendant timely served notice of the Motion and the Motion on the Plaintiff.

Background

The Complaint in this matter, filed by Plaintiff on 11/8/25, included an attachment of the purported agreement between the parties. See Attachment A, section on Arbitration. This agreement appears to contain an arbitration clause, which reflects that a party may request arbitration at any time by filing a motion to compel arbitration. The section also makes clear that the parties will lose the right to litigate after the arbitration clause is triggered.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ.